

bruce mcivor transcript

[Peter] (0:02 - 1:17)

Well, good morning, Steve, and welcome Bruce McIvor to our Domination Chronicles podcast. It's a moment that I've been looking forward to. I think you and Steve also have, and Bruce, we've all been kind of circling each other in our work, and it's time that we actually joined each other in a conversation.

Bruce McIvor is going to tell you about himself, but just for me to say he's a lawyer, practices up in, well, I was going to say in Vancouver, but he has a law firm that he's created over the last few years, which has offices also in Ottawa and elsewhere, working with a law office called First People's Law. So you get an idea immediately from that, that's his practice. It's not a sideline.

And Bruce also has, prior to getting involved with law, he was on an academic kind of track and has a degree in history, PhD in history. So welcome, Bruce, to the Domination Chronicles podcast. And if you'll just pick up with, say a little bit about yourself personally, et cetera.

[Bruce] (1:18 - 5:35)

Okay, well, thanks to you both for the invite. I know I've followed your work for a long time, and it's nice to have the conversations. That's just such an important part of creating a context and a movement that's really positive and forward-looking for Indigenous people.

So thank you for that. Yeah, just a bit more. It was funny, Peter, when you introduced me as a lawyer, because when I have that introduction, one of the first things I say is, but I'm not that kind of lawyer.

It's a bit sad that the legal profession is in such a state that I have to say that, but it's true. And I'm a lawyer by accident. I didn't ever intend to be a lawyer.

I didn't know lawyers when I was growing up. In fact, I didn't even know any professionals when I was growing up, except there were a couple of professional poachers around, so I did know them. But I grew up back in the bush in Manitoba, north of Winnipeg.

It's a region of Manitoba called the Interlake. And so I always tell people it's the kind of place where there are farms, but they aren't farms like you might see on the TV news, these beautiful rectangular fields, right? No, this is small bits of semi-agricultural land in between a rock ridge and a swamp.

And so that's kind of on that agricultural fringe that you see running across north of North America. Why we were there was because my family, my mum's side is an old French-Canadian family, came to the east coast to Mi'kma'ki in the 1630s. My dad's family is an old fur trader, Mi'kma'ki family, so for the Hudson Bay Company, Scots, and then as far as I can tell, the Anishinaabe and Cree.

So they came together in southern Manitoba in the Red River settlement, which some of your listeners might know about. That's kind of the heartland of the Métis Nation of Canada is down there. But like a lot of Indigenous people across both North and South America, that

history of displacement off the So that was my family's history and how we ended up back in the bush, trying to farm between these rock ridges and swamps.

And when I get asked sometimes, how did you become a lawyer? I said, well, I picked a lot of rocks when I was a kid. There was a day I thought, my grandparents picked these rocks, my parents picked these rocks, I gotta find something else to do because my children will be picking rocks on the same darn fields.

And somehow that led me off to university. And there are times when practicing law, I think, oh, you know what, I would rather be picking rocks today than dealing with some of the people that I need to deal with. But that was kind of my trajectory into the law.

[Peter] (5:35 - 7:40)

Now, you have a couple of books that I want to mention, because people should look at your first one, Stand Off, Why Reconciliation Has Failed, something of that sort. Yeah, there it is. And that's the book where I have mentioned that you say reconciliation is a four-letter word to indigenous peoples.

And I think that really says a lot. You can run with that if you want. And then you have your latest book, which is this indigenous right, The One Minute.

It's not really, you're going to read the book one minute, it's little one minute segments on things that people normally would just forget about, because I can't understand it's too technical. So those are the two books that you've produced, in addition to doing the actual legal work. And so I don't know, Steve, if you have specific questions for Bruce, but I'm thinking that reconciliation is an issue that's been around now for a few years.

And it has captured a lot of so-called progressive thinking as being, oh, this is a real solution, we're now solving all the problems. And in fact, it has not been solving any real problems, I don't think. I mean, you may have seen something solved.

But then in addition, I'm going to jump to the second book, explaining things is that it seems like there's a kind of enhanced movement to extinguish native existence, first native existence under the current Canadian government. And I'm wondering, to what extent can a lawyer even keep up with the barrage of attacks that are being prepared, most of them, just as devious as the so-called reconciliation, because they use the terminology of self determination, for example, that kind of thing.

[Bruce] (7:41 - 10:46)

Yeah, yeah, maybe just thanks for that period, just a couple of things about the two books I have, and I'm working on a third one. A lot of the work I do with my firm, First Peoples Law, and the focus, not just me, but all the team members there, is to not just practice law, is to be part of that public conversation across the country. Because as you both know, there's so much misinterpretation, misrepresentation, outright ignorance about Indigenous people's rights.

And that itself is a form of violence. And it's a form of domination that's used against Indigenous people across the Americas. And so what we try to do in one small way is correct that misinformation, and call out the lies.

Because there's so many lies, you're both familiar with it. And fill that void, because ignorance itself is a weapon. That's you.

So the way that I've written my books is that they're not for lawyers. There are a lot of lawyers who read them. Judges, I know, have read them.

But they're not intended for lawyers, they're intended for non-lawyers. Because when I first started in the law, I didn't think the law was that complicated. But lawyers represent it as being so complicated, right?

And they create that barrier that they're the only one, not all, but a lot of them. You got to pay them because they're the only ones that can understand the law. I think if that's the reaction they get from their clients and the public, is that, oh, they've got to rely on them, they're doing something wrong.

They have a responsibility to explain the law to non-lawyers. You don't dumb it down, people are smart. I'm like, I come from a family of non-professionals, they're all smart people.

Just because they're not going to university doesn't mean they can't follow this stuff. So it's our responsibility, at least I feel like my responsibility, to explain these things simply directly, so that people can then be part of a more useful, productive conversation. I think that's key.

The best reactions I get are when people say, I loved your book, you didn't sound like a lawyer. Fantastic. So that's how the books are written.

[Peter] (10:46 - 11:38)

Yeah, yeah. Well, and I think that when Steve and I started this series just a few months ago, The Domination Chronicles, the word, the name itself, the name Domination Chronicles goes to already a piece of education. And Steve pioneered that with his insistence.

Steve, you can say something about it, you're a Domination translator. Your insistence on cutting through, sort of cut to the chase here, what are these words that are being used, especially the big legalistic words, and the political rhetoric words? What do they actually mean here?

And it turns out again, and again, and again, you come down to very simple power plays that are being made under the guise of whatever, some humanitarian concern or something of that sort.

[Steve3] (11:40 - 12:37)

Yeah, I think that the way in which reconciliation has been used by the Canadian government is fascinating, because I always wonder what it is that the RE prefix is referencing. In other words, if you're going to redo something, you have to have done it before, and now you're going to do it again. But what is that?

So is that a conciliatory, beneficial, friendly relationship between a dominating system and the original nations and peoples of a given area? I don't think so. And so the way in which

that type of euphemistic and actually, I guess, coded language, in a sense, is used to confuse people and obfuscate very important fundamental issues is problematic, to say the least.

[Bruce] (12:38 - 13:40)

Yeah, I think that's such an important point, Steve. And what it often does, I've seen in Canada, is that it then puts Indigenous people who don't buy into the rhetoric, it puts them that they're, and this is such a long history of this, they're then classified as the troublemakers. You're the troublemakers.

You're not getting on the reconciliation train. You know, we have the promised land in sight, just jump on board. Yeah, we're driving the train, and we decided where it's going.

But still, we've got a seat for you here on the train. And when Indigenous people say, I don't agree with the basic fundamental premises of your train. Whoa, troublemaker.

[Steve3] (13:41 - 13:41)

Yeah.

[Bruce] (13:41 - 16:20)

And, you know, this is such a long standing trope in Indigenous, non-Indigenous relations across the Americas. You see it everywhere, right? When colonizers have faced Indigenous people that push back and say, stop, it's my land.

Oh, you're a troublemaker. Right? And this all, we've seen it so many times.

And I think that's a really good point, Steve. That's why you need to unpack that language. Wait a minute, what are you really talking about?

The language itself, words themselves matter. You've got certain assumptions built in to the words and the concepts. Let's look at those critically first before we just jump on that train and roar off in what you say will be the promised land.

Yeah. Yeah. I was thinking, the way this book works is it's a bit like a frequently asked questions.

So I'm sure the same as you, I get asked so many of the same questions all the time, right? And I do a lot of public events in Canada. So I thought, you know what, I'm just going to put my answers into a book.

I don't have to keep saying it. So the way the format is, I pose the question and then I give a one sentence answer. And then I do about 300, 400 words that expand on that a bit.

So that's why it takes a minute. That's where the minute. So I asked the question, what is reconciliation?

This is what I hear. So my one sentence responses, reconciliation is Canada's attempt to legitimize its ongoing colonization project. I got a lot of people when they were, oh, that's harsh.

Like it does sound a bit harsh if you think it's something else, but I know for a lot of indigenous people, at least the ones that I talk to, yeah, that sounds more close to the truth.

[Peter] (16:20 - 17:04)

Yeah. Yeah. We emphasize over and over again, the ongoing process.

And I was struck when you talk about the troublemakers is that it's the Spanish Requirement came to mind is that that's been the, that's been the line since the very first day is that here, we own this, we're in charge, we have a place for you. And here's what it is. And they explain it.

And people didn't even tell them, if you don't agree with this, we're going to use a lot of violence on you. And guess what? It's going to be your fault.

It's like, what am I, you know, I was going to say, but yeah, that's, that's just one of the pattern.

[Bruce] (17:05 - 19:08)

One of the best books I read in the last year or two is Carolyn Elkins book, The Legacy of Violence. And she's a British historian. And she go through from the late 19th into the mid 20th century, just in detail, recounting how the British Empire used violence against indigenous people from all around the world to displace them and steal their land.

And she does a great job of showing us a lot of these people were the same people getting moved around from the Canadian West to Burma to India. These were the same people and they passed on these techniques of using the law against local people. I think one of the best concepts she has in her book is legalized lawlessness.

Wow. Legalized lawlessness. And you see it, I'm sure, every day, right?

This is what the colonizers do. They manipulate their own laws to make it that you're operating outside the law as an indigenous person, as a land defender, and then you become criminalized. They criminalize you.

And then they use this holy grail of the rule of law. Yes, the rule of law, we must adhere to no one can disagree with the rule of law. Yeah.

Right. And then they use that against indigenous people. What people don't say is whose law?

Yeah. That's the rule of the colonizers law, which you just manipulated.

[Steve3] (19:09 - 19:09)

Yeah.

[Bruce] (19:10 - 19:50)

In order to criminalize me. We've been seeing it here in Canada with both the federal and the provincial governments manipulating their laws to criminalize indigenous people who are opposed to them stealing their land for these so-called projects of national interest, whether it be a pipeline or a port. That's how it's worked, always worked.

It's not new. They're just continuing to do the same thing.

[Peter] (19:52 - 22:16)

I'm sorry, Steve. Go ahead. No, go ahead.

We hear that globally now talking and people are so upset. The rules-based order is like some kind of sacred thing. And the fact that how it works is through domination, exploitation, extraction, et cetera, is invisible because it has what a nice sounding phrase, rules-based order, the rule of law.

And one other thing, what you just said, it gave me a sudden sense that there's been, when you talk about the same people being used in colonial impositions, that there's a kind of a special, it's almost like a special training school that created a cadre to move these people around so they can be the, it's like the leading edge of the intellectual class that can organize and so on and so forth. I mean, it's quite amazing to think of it as being a skill, the skill of domination. And I think that if we look back at the history of what we call Europe now, you look at the development of universities and you go back to the earliest structures of the church teaching people and carrying the so-called written word, it was all coordinated around how do we run an empire?

And so the education was the education of dominators, essentially. And so the cadres that they use, they're kind of stormtroopers. It's not surprising.

I hadn't thought of it before, but it's not surprising to find out, oh, they move these same people around. One little story, and then I'll stop babbling here for a minute. But when I was practicing with the Navajo, we had a case of abuse of a student in a boarding school.

And when we responded to it and pressed back, oh, well, the BI said, we've removed that administrator. Well, a few months later, we found another, had another complaint at a different boarding school. And lo and behold, it was the same guy.

They had just moved him around like, oh, he got too much hot water here. They didn't get rid of him. They just moved him, gave him another job in another school so he could do the same thing.

But those people were trained to be able to run those schools. Steve, I interrupted you.

[Steve3] (22:17 - 23:32)

No, you didn't. Well, I think that the adding the two letters I and R to the word the is very important, their law. And the use of that article the makes it sound like it's universal.

Yes. It applies to everyone. And everybody's obligated to concede to the premise, to accept the premise that they brought with them on a ship across an ocean.

And most people don't ever bother to go back to that premise and start there and say, hey, wait a minute, you have people's nations and people's living completely free and independent of any Christian European domination. Then suddenly these people show up with crazy documents like the requirement or the requirement and saying you're now, we

are here by putting you on notice that you're obligated to abide by all these ideas we're about to spew in your direction. And if you don't go along with it, woe be unto you.

And it's going to be, as Peter said, your fault for not abiding by the law. So I think we need to delve into pretty much all of the specifics of their terminology.

[Bruce] (23:33 - 28:22)

And if because indigenous people have always been so good at finding ways to use those tools against the colonizers. I remember when I was doing my graduate degrees, my master's in history was about how indigenous people in 19th century British Columbia faced with these colonizers, would find out what the rules of property ownership were, because the colonial government here in BC would hand out certificates for pre-emptions. But they were told that settlers were the so-called settlers.

I don't really care for that term a lot, but you can't pre-empt an Indian settlement or a graveyard or where they have potato patches, where they've cultivated, right? That idea. So what I found was there were a lot of indigenous people found out about this.

So, oh, well, let's go put up a fence. Let's go plant some potatoes. Let's go do those things.

Because we know that those are the indicia that the colonizers use to say that someone's claimed this land. And so they began using them. But then what you get is, well, let's change the laws.

In Canada, when First Nation people started using the law, what the federal government did was change the Indian Act in the 1920s to make it against the law for Indian Act bans to hire a lawyer. Oh, that'll solve it, because you guys are making trouble. So let's just manipulate the laws.

And this is what we get. We get here in BC. I don't know if you're aware, but there was a case decided recently that the provincial law in British Columbia that implements the United Nations Declaration on the Rights of Indigenous People.

The BC Court of Appeal decided that puts a positive obligation on the provincial government to immediately ensure that it's living up to the UNDRIP principles. Because our provincial government had said since the law was passed, oh, no, that's for down the road. That's aspirational.

Aspirational. When we get to it, when the stars align, then we'll do it. But the court said, no, we read the law.

We apply fundamental existing principles of statutory interpretation. Your law says you're doing this. You got to do it now.

So what the response has been from the provincial government in BC has been two things. One, criticize the courts, that the courts are meddling in reconciliation. Oh, my God.

The courts. It's unbelievable. Unbelievable.

I've been doing media around this, and I've been comparing the Premier of British Columbia to Donald Trump. And I think that shocked a lot of people because he comes from a different background. He's a lawyer himself, or Premier.

He used to work for the British Columbia Civil Liberties Society. But here he is questioning the role of the courts. So that's the first thing.

And then what they've also said is, okay, then we'll go and change the law. We'll go and change that provincial law. So we don't care what the courts say, we'll just go and change that.

That's a perfect example of what we've been talking about. Even when Indigenous people find a way to use colonizer laws in a positive way to defend the lands, colonizers will go and just manipulate their own law and then say, well, now we have to respect the rule of law. And you're like, what the hell?

You just changed it to suit yourself.

[Peter] (28:22 - 28:44)

Yeah. I remember Philip Deere talking, I think it was Philip, he used the image of, you know, moving where the goal is. Like, here's the goal.

And if you get to the goal, if the native litigants get to the goals, oh, well, the goal moved, you know, you hit the old goal, but the goal now is in a new place. Yeah.

[Steve3] (28:45 - 28:56)

What is the official definition of reconciliation? The official reconciliation definition of the federal government there in Canada?

[Bruce] (28:57 - 29:04)

Well, I'm not sure what the, how, because the feds, for me, I look at what the Supreme Court of Canada says.

[Steve3] (29:04 - 29:05)

Okay.

[Bruce] (29:05 - 32:46)

Because that's where it comes from. It's one of the things that I emphasize a lot. You'll probably know a little bit about someone there in the States talking about making Canada the 51st state and all this stuff.

And the response in Canada has been elbows up, which is this hockey term. Of course, we would go to hockey, right? But when in hockey, if the opposing team starts playing dirty, elbows up, buddy, we're coming for you.

You come into the corner, you're going to get it right in the side of the head, right? So that's been what's been going on. But what I've been telling people is that, and there's all this rally around the Canadian flag.

I've never seen so many Canadian flags. I know that's more of an American thing. When I've traveled in the States, you see a lot of American flags outside of people's homes.

You don't get that in Canada very much. Except recently, there's been a run on Canadian flags, all these people putting up their flags. But what I tell them is that, okay, fine.

If you want to find something that differentiates Canada from the United States, because we have so much in common, right? And something you can be proud of that differentiates the two countries, it's that Aboriginal and treaty rights in Canada are protected under our constitution. That is very different.

There's this constitutional protection and all the laws, the colonizers can manipulate their laws as much as they want, whether they're federal or provincial. But ultimately, it can get to the point where the Supreme Court of Canada will say, wait a minute, you manipulated your law, but it's out of line with the constitutional protection. And so we're going to strike it down.

And it's a very different legal context. And what I tell people is that, hey, you want to be proud of Canada? Be proud of that.

That is a real positive thing. It's definitely not a panacea. And it doesn't work perfectly.

There's a lot of problems with it. But it is something I think that sets Canada apart. I know I talked to a lot of my New Zealand friends, and I've traveled there.

It's one of the things that puts the differences that puts the Maori in such a different position than my First Nation clients here in Canada, because the Maori might make an advancement, might find a way to use colonizer law, but the colonizers can just go change the law. In Canada, reconciliation has really been formed by the case law from the Supreme Court of Canada. That's where it comes from, right?

[Steve3] (32:46 - 33:43)

So with regard to that, as I recall, the Supreme Court of Canada has referenced the reconciliation of a pre-existing, the pre-existence of the Native nations or Native peoples, whatever terminology they use, with the reconciliation of that pre-existence with the assertion or assumption of crown sovereignty or crown title. So that's the reconciliation that I see. But to me, what that means then is harmonizing the pre-existence with the assertion of a claim of a right of domination, but virtually no one acknowledges that that assertion of crown sovereignty is an assertion of a right of domination.

That's out of focus entirely. What's your thought on that?

[Bruce] (33:43 - 35:14)

No, you summed it up bang on, Steve. That is what the court says here. And the way that I describe it, and in my new book and my first one, is that reconciliation in the Canadian context is first accepting the doctrine of discovery.

You got to accept that. It's not going away. Accept that colonizers can show up, plant a flag, displace Indigenous law-making over their land, displace their interests in the land.

Once you accept that, now let's reconcile that. And the way that I describe it and why reconciliation doesn't work, I think, it's trying to reconcile that lie with a right, this pre-existing right to the land. So no wonder it doesn't work.

At least it doesn't work for Indigenous people, because what the courts and Canadian governments are telling them is that you've got to accept this fundamental lie first. Once you accept that, then we can talk about how we can find ways forward. But you've got to accept it.

[Steve3] (35:15 - 35:20)

Well, I think that the idea is once you accept that, we're going to get along just fine.

[Bruce] (35:21 - 37:06)

Yeah. And you can have rights, but you can't have rights that upset that. I get asked a lot by my clients, but wait a minute, this whole doctrine is corrupt.

And one of the things I explain is that the constitutional law for Indigenous rights in Canada is grounded on that corrupt doctrine. Thanks to our American friends, the Canadian courts just imported the doctrine of discovery from the United States. Of course, as both you know from the Marshall decisions, they imported that into Canadian law first in the late 19th century.

But most importantly, when constitutional rights were protected here in Canada in 1982, the constitutional rights of Indigenous people, in their first decisions, the Supreme Court of Canada started from the premise that they were going to accept the doctrine of discovery. They literally say, and they cite the Marshall decisions, no one's ever questioned this. They're thinking, I can think of a few people.

And so that's been that rotten foundation of the constitutional protection for Indigenous rights here.

[Steve3] (37:07 - 37:10)

So is that the Gitksan decision?

[Bruce] (37:11 - 37:12)

No.

[Steve3] (37:12 - 37:15)

1992? Which one is that?

[Bruce] (37:15 - 37:19)

The Sparrow decision.

[Steve3] (37:19 - 37:29)

Oh, the Sparrow decision. But that's not 1992, is it? That's the late 1800s, right?

The Sparrow decision?

[Bruce] (37:30 - 39:16)

No. So the constitutional protection for Aboriginal treaty rights occurred in 1982. But the courts didn't start to interpret what this meant until later.

Yeah. So the court decision started coming out. There was an intention at the time that the protection was put into the Canadian constitution that there would be a subsequent conference to figure out what are these rights that we say we protected.

Never occurred. So then that void has since been filled by the Supreme Court of Canada. And so they start in 1990.

But they've always proceeded from the acceptance of the doctrine of discovery. And one reason is that how could they question it? Their own authority to decide is based on that doctrine.

Yeah. I'll give the example. It's kind of like someone driving down the road with an old beat up truck.

And there's smoke blowing out the back and the engine is hammering away, but they won't stop and lift up the hood. They can't. They just keep driving along.

And that's kind of the position that our Supreme Court's been in. We're not going to question this fundamental lie.

[Steve3] (39:17 - 39:21)

I was trying to remember the Delgamuukw decision. Wasn't that in the 1990s?

[Bruce] (39:22 - 39:23)

That's 97.

[Steve3] (39:24 - 39:25)

97. Okay.

[Bruce] (39:25 - 40:10)

Yeah. So the big cases here in Canada in the 1880s was the St. Catherine's decision. That's the one that imports, thank you very much, our American friends, your doctrine of discovery from the Marshall decisions.

So that gets imported then into Canadian law. But then, of course, like I said, for decades, Indigenous people couldn't even hire a lawyer in Canada. So you didn't have much case law until the 1970s.

And that's where it starts again.

[Peter] (40:10 - 41:24)

You know, the Tribal Council lawyers, after the councils were established as federal kind of approved governments, they were there. In fact, I think it's, I'm not sure it's not still in effect. I think it's not still in effect, but it's fairly recently.

Their contracts with lawyers had to be approved by the Secretary of the Interior. They couldn't just hire anybody they wanted. It had to be somebody on the approved list.

The other thing I want to back up just a bit was you were talking about how these rights that are constitutionalized, they're still subject to the colonial law, though. So it sounds like that part is quite similar to the U.S. There are not provisions in the Constitution for Indigenous rights in the U.S. And so that's a difference. So that even in the Canadian situation where you have a constitutional provision saying there are Native rights, you're still actually in the same ballpark of saying the overall structure is still dominant based on the original claims of the Christian discovery and so on and so forth.

So help me understand.

[Bruce] (41:25 - 43:22)

Well, yeah. So the difference is that the Supreme Court of Canada, because it's a constitutional protection, they've interpreted how that constitutional protection applies. And so if there's a provincial or federal law that the Supreme Court decides is counter to the purpose of that constitutional protection, they will strike down that federal or provincial law.

So that's the major difference. Now, the way they've interpreted the protection is to ensure that it doesn't rock the boat too much. It's there.

And I've written about this, right, that they still keep the guardrails on. You don't want to upset the colonial project too much, but that's a matter of interpretation by the courts. But the protection is there.

So it's very different from the United States example, right, because there's no specific constitutional protection. Congress can pass a law that will do it. They can do whatever they want.

It's legislative supremacy. But here, because the constitutional protection, unlike the American Constitution, is written in to the Constitution, so that it says that existing aboriginal and treaty rights are hereby recognized and affirmed. That's all it says.

That has become very, very powerful.

[Steve3] (43:23 - 44:56)

The thing that I find interesting about that is, as soon as you see that word aboriginal, what's being referenced is the Johnson versus McIntosh ruling and that framework of analysis, the framework that they're using, which goes right back to what I already said about the assertion of crown sovereignty or crown title, which is an assertion of a right of domination. And I think that it's so crucial that people begin to modify the way in which they discuss these issues, so that it's no longer the doctrine of discovery, which sounds very innocuous and benign, and identify it accurately as a doctrine of domination. In other words, a claim of a right of domination, so that that is the central focus of people's attention.

So then it's really the assertion of crown domination or the assertion of domination by the British crown in arriving to a shoreline and engaging in some kind of ceremonial act and so forth. And at what point, and I want to say already that at no point, but the question could

be posed, at what point does a claim of a right of domination ever become valid? And I want to say, well, it never becomes valid because it's against the free and independent existence of a people and they have a fundamental right to that free existence.

So this way in which I'm using vocabulary right at this moment is not the way people typically talk about any of these issues.

[Bruce] (44:56 - 48:22)

No, I think that's a very good point, Steve. One of the things in Canada and in the law, we don't, the courts don't use the doctrine of discovery, because as you both know, you know, that's a four-letter word itself. It's been repudiated all around the world, right?

So here, Canadian courts use the euphemism, the assertion of crown sovereignty, which sounds a lot softer, right? But it is the same thing. And this is what I tell people, you should just substitute those things.

This is the same thing. And one of the things we have in common between the two countries is the importance of the Royal Proclamation of 1763. Peter and I were talking about this, you know, that was one of the fundamental issues of disagreement that led to the American Revolutionary War, because of the demarcation line, you shall go no further west to take Indian land.

And this was the British crown saying this, right? And in Canada, at least, you'll get some people point to the Royal Proclamation as kind of the original Indian Bill of Rights. Because it does recognize, to a certain extent, there are indigenous nations, they have an interest, you can't just come and steal their land, only the crown can do that kind of thing.

But what's important from my perspective, this is the assertion of domination, like you're talking about, Steve, that's what the Royal Proclamation was all about. What people don't think about is the Treaty of Niagara the next year in 1764. And for both Americans and Canadians, it's important, I think, to know about the Royal Proclamation.

Sure, like, what is this about? And not just about it being one of the causes of the Revolutionary War, but that this was about dominating, like you say, Steve, indigenous land people. But how different it was at the time that you had the Treaty of Niagara the next year, because you couldn't just have the crown doing this.

You had powerful indigenous nations, and the crown recognized that. They could print off whatever crazy proclamations they wanted. But ultimately, at the time, these were strong, powerful military nations that they had to come and parlay with.

And that's, there's a real change from that kind of interaction to later. And this is something, of course, that the Marshall decisions totally ignore. They just accept that the crown's got all the authority to do this.

They don't look at what the indigenous reaction was to that. And they also don't look at the respect at the time that was paid to indigenous nations.

[Peter] (48:24 - 49:44)

Yeah, that's the Marshall's phrase, the pretense of conquest. Yes. The time Marshall writes is about conquest.

There's been no actual conquest, certainly, absolutely clear, not any conquest of the continent as a whole. But that's what he's claiming. So that's why he's phrased, it's a pretense.

And we're going to pretend, we're playing pretend now. And as you pointed out, and we've been talking about it, this is a pretend game that's been going on now, since early decisions. But it's really the same pretense that went on with the claim itself.

When James I or any other monarch, Ferdinand, Isabella, they send people out, there's a pretend game going on, except they're not, they don't recognize the way Marshall actually acknowledges the pretense. They're playing this game. And one of the things that we've recently started exploring is the way in which that these, this ongoing imperial colonial movement that claimed a right of domination, tied to Christendom, explicitly, it actually was claiming a duty to dominate.

The God of the, of the Bible, of the Old Testament, the Hebrew covenant with, what's his name, Abraham, that God said, you have a duty to do this.

[Bruce] (49:45 - 49:45)
Yes.

[Peter] (49:45 - 50:34)
Passages in the Bible, I remember working on this when I wrote my book about federal anti-Indian law, where God sends an angel to tell these people wandering with Abraham on their mission to take the land that they've been covenanted that they've settled down, they're getting along with the people that they were supposed to crush. And that if they don't crush them and break down their altars and destroy their cattle and sheep and all of this, if they don't do that, he's going to come after them. So what a bizarre concept of a God.

You go out and kill these people and take them over. And if you don't do that, I'm killing you. I mean, it sounds more like the way, you know, any corrupt gang works, you know, to take care of them.

Boom. You didn't take care of them.

[Steve3] (50:35 - 51:57)
Yeah. You know, the real quick, the there's a sentence that I always quote in the one of the papal bulls, the Vatican papal bulls that says we trust in him, capital H on him referring to their deity from whom empires and dominations and all good things proceed. So it makes sense that he'd be sending an angel to put them on notice that they have a requirement to go ahead and crush those people as he commanded them to do.

And so but also going back to that idea of the crown sovereignty, Jonathan Havercroft in his book, *The Captives of Sovereignty*, makes the he creates a definition where he defines sovereignty as an unjust form of political domination that limits human freedom. And I think unless we are precise with these types of definitions, you have many different political

thinkers, political philosophers that have identified that undercurrent or the theme of domination running through all these different terms that we have identified, that until we do that and make that explicit and make that part of the public discussion, that that remains out of focus and unidentified.

[Bruce] (51:58 - 55:40)

Yeah, those are such good points. Maybe I just pick up on a couple of them. The first one, because I teach this at the law school at the University of British Columbia.

One of the things I because I teach this course on Aboriginal treaty rights with my colleague Kate Gunn, and we try to situate historically where these decisions come from, right? Because I was trained as a historian first, I think I just kind of naturally go there. Where and when are we?

And that shifts. And I think that's really important to keep in mind that that 50 year shift from 1763 to the 1820s, things change such a huge extent in what Marshall wrote in the 20s and 30s. It would have been hard to write that in the 1760s.

The reality of the strength and the dynamism of Indigenous nations at the time, and the respect that the colonizers, British and French, had for them at the time, I think it's really important to keep that in mind. And a lot of people in the United States and Canada don't recognize that. But that shift when you get into the early 19th century, and the forces of colonization that have undermined the strength of Indigenous people, so many of them, the church, like you're talking about Steve, disease, right?

They're in such a different position in the 1820s and 30s. And so what Marshall's writing about, he's got his head kind of stuck in there at the time, but it's not the way it was. It's not the way it was in different parts of North America.

I know, out here in British Columbia, one of the original court decisions was trying to interpret a treaty that was made on Vancouver Island in the 1850s. And the court said, you have to keep in mind that there was only a few Hudson Bay fur traders, and there were probably more than 10,000 Indigenous people. They could have wiped them out like that.

The power dynamic was very, very different from what someone may think now. And it's important to keep that in mind. A good book on this is the historian Richard White wrote a book, *The Middle Ground*, about what was going on in the Ohio Valley back at the time, and just how complicated and how much respect you need to give Indigenous people.

So I find with the law, so much of the law develops blind to that. That's that colonizer narrative. That's like the church's narrative that you're both talking about, right?

Just overrides all that. And it's so disrespectful of the strength and resilience of Indigenous people.

[Peter] (55:41 - 56:18)

Interesting to think about the concept of time there. You're talking about historical circumstances that are documented, etc. So you can say, okay, in 1760s, etc., 1820s, etc. But

it occurs to me that the colonizer worldview flattens all that. So there's a kind of a timeless time. And it's always been this way.

You know, God created it this way. And we're just announcing it. And, you know, it's- It's the truth.

Yeah, it's the truth. Exactly.

[Bruce] (56:19 - 58:04)

It's the truth. It's- I couldn't, you put it better than I did, Peter. But that's exactly what I'm thinking of.

And then when I teach my courses, I use Google Earth. And so I pinpoint where the incident occurred that led to this case that went all the way up to the Supreme Court. So where did Donald Marshall catch those eels that became the Marshall decision?

Or where did Ron Sparrow fish that became the Sparrow decision? And so I start, and then we start on the map in our classroom at the UBC campus, and then we zoom somewhere else. Because I think it's really important, if you're going to understand the law, how it develops, to situate yourself in time and place.

This ahistorical time is a form of domination. That's what it is. And the idea that it occurs the same doesn't matter where you are.

Like, you know yourself, the East Coast of the United States compared to the West Coast of the United States. Oh my God, like, we're talking hundreds of years here. The factors going on, you know, when you get from the Mayflower to the California Gold Rush, like that's not just a different place, but the factors, the forces are very, very different.

[Steve3] (58:06 - 59:52)

At the same time, true, there are all those different historical circumstances. But at the same time, that theme of domination is running through the whole thing. So when you're talking about the strength and power of the Native nations back in 1764 and the Niagara Treaty, the strength is a result of the original free existence of the people.

And they're very cognizant of their free existence. And they're cognizant of the fact that they're pushing against this thing trying to come in on top of them. And so I think there's a way in which even the people learn how to use English or how to translate from their own language into whatever colonizer language, whether it's French or English or Spanish or whatever, the way in which they are attempting to express themselves within the colonizer language.

Well, we have been working at this for such a long time now. We, quote unquote, as Indigenous peoples' representatives or original nations' representatives to figure out what is the most effective manner in which to use this colonizer language to push forward the position that we need to push forward. And if we don't acknowledge our original free existence and the sacred birth right that that gives to us as the successors and the heirs of our ancestors, then that's a very unfortunate way in which we are not learning how to be more and more effective at using this English language, for example.

[Bruce] (59:52 - 1:06:09)

Yeah. The language revitalization is key. It comes from the language.

If you're going to use the colonizer's language, how difficult that is. I know as lawyers, it's such a challenge, right? I tell people all the time, and I tell the law students I teach and the junior lawyers that I mentor, you're going to spend, and particularly the Indigenous lawyers, you're going to spend the rest of your career decolonizing your mind because you've spent all these years learning this.

And now you really have to work hard at decolonizing just the way you interact, the way you think of the world, of what your relationship is, and that it's not something you just learn. It's something you just kind of keep having to work hard. I've been doing this for a long time.

I find it challenging all the time. I fall into the same problems, the same mistakes. I don't take the time and be critical enough of what words I'm using.

What does that mean? I give the example I write about in my first book about this and stand off. I think the parts of that book that work the best are when I use my own personal history, whether it be my family's growing up or just practicing law in Canada on behalf of First Nations.

So I tell stories. And as you know, telling stories is just, this is the power of that storytelling. I have a lot of law students, they get really upset because I often teach by telling stories.

And they're, no, where's the PowerPoint, man? I want the PowerPoint. Where are my points?

I'm going to write them down. And I'm like, no, no, no. I'm telling you a story.

And sometimes I need to be explicit. I'm telling you a story because by telling you a story, I'm bringing you into it. And I'm putting a responsibility on you to listen.

You can't be passive and just consume. You've got to listen hard and figure out what the hell is this story about. And then importantly, you have to accept that it may, you may think it's about something else than the person sitting next to you.

Because depending where you are and where you are in your life and your history and you're going, you've got to work at that. You got to learn to do that. And I get a lot of pushback at the university.

I get a lot of people, what are you doing? I'm not going to do it in a colonizer way, giving you a PowerPoint. I'm going to teach it like this because this is how my clients teach me all the time.

And I give the example, I worked on this case for years where we were trying to get the provincial government in Ontario to recognize my First Nation client's jurisdiction, right? So this is the big thing. And finally, we had a big breakthrough at a meeting in Toronto.

I got on the plane. I flew up to Thunder Bay, which is a couple of hours. I got on a smaller plane.

I flew farther north to meet with my clients because they don't even have a road. And so we do a community meeting. Their first language is Ojibwe.

And so when we do the meeting, it's all in translation. So I'm talking away and I'm passing the mic and they're translating. I'm going, jurisdiction this, jurisdiction that, blah, blah, blah.

And then finally, the fellow who's doing the translation turns to me and says, Bruce, you keep talking about jurisdiction. They don't know what you're talking about. And then later on, I think we were having dinner afterwards.

One of the elders starts telling a story. And he talks about how when I was a kid and we wanted to go visit our cousins down the river. So we got in our canoe.

We went down the river to visit them, came around the bend where their community was. And there were my cousins handcuffed to poplar trees. That was it.

I was like, what the hell? And it wasn't until I'm flying back that I was so dense, right? We're all, we're just dumb sometimes.

You just got to work at it. That's why he told me that story. Because when I said jurisdiction, he thought of the people that handcuffed his cousins to poplar trees, the church, the Indian agent, the police.

That's what it meant. And I've got to find a different way to talk about this. And I thought that was a good example of telling stories.

It's such a more powerful way to communicate that in such a gentle way, right? It's such a gentle way. Really strong, like really, oh my god, I've really been told here.

But in a non-constitutional way, you take that and you learn.

[Peter] (1:06:09 - 1:10:22)

And it seems that is a powerful story. Steve and I have talked about this bizarre word jurisdiction, you know, the power to speak the law, etc., whatever that supposedly means. And it occurs to me, we don't have enough time today to go into another whole line of inquiry, but it must be done.

It's about language and original existence and and peoples who have so-called lost their language. I don't know that there's a way you can have language recommended. How is it possible to go back?

Because now you're translating from English. And well, what's our original word for jurisdiction? Well, we didn't have such a concept.

And I think the inference works is also is that, you know, if you read any like biographical, autobiographical material about native peoples, you find that it's been talked about by, you know, within literature fields, that the whole concept of a biography is just not comprehensible. They say, well, now, Left Hand, you know, that's the old elder's name, you know, tell us what's your story of your life? Well, he'll tell a story that's an interesting story.

They say, no, but what did that happen before or after? Well, he's not conceiving of his life as a linear track. And so what does that mean?

And then you say, well, you start to realize what the colonists were always surprised about, you know, well, where's your chief? And they couldn't understand the chief was not like a king. They kept wanting to be like a king.

And they find, well, people don't think about things in the same way. We don't have a concept for that, right. And so I think that it's the problem of the language.

Languages is, is got to be looked at in every direction, not just how do we revive this language? Is it even revivable? Or how did these so called treaty discussions happen?

If the person doesn't have the same concept of an ego centered individual position of, you know, jurisdiction over his people, that's not even in the mind of the Western Shoshone, who was regarded as the chief. Well, why was he the chief? Well, he's, he's the guy he's really seems like the wisest guy, you know, he helps us out a lot.

Oh, did you elect him? What do you mean elect? What does that mean?

So the incompatibilities of concepts seems to me. And I think that we're, we're at the long end of this long history, but I have a sense that the crumbling of, of institutions around the world that's going on with all kinds of chaos is a sign of some, something is not holding together really in this domination. The big guy that wants to send out his archangel, I think he's got too many things on his hands.

Now it's all falling apart. He can send all his archangels out. And this is just me ranting a little bit is not going to be able to hold it together.

And, and underneath it all, whatever original free existence might mean in a specific people in a specific time and place. It also means just human existence. A child is born right into life on earth.

What is that actually all about? They're not born. Well, according to the colonizer, they're born into citizenship.

They get their social security number, they get assigned a grade in class, et cetera. That's civilization. How do we, how do we put this little new being that comes into this complete cosmos?

How do we fit them in? Here's a, we've got a little pigeonhole here. We're trying to fit them into that.

I mean, there's so many things that this is what I meant before we started this about when, what Steve and I are, you know, increasingly doing is illuminating questions that are, that apply to life. What does it mean being human? It's not just, Oh, in 1760 in a particular place being human.

[Steve3] (1:10:22 - 1:12:12)

Yeah. There's a book I have here, a dictionary of word origins and Joseph Shipley. And there's another source that I can point to.

I don't have that book in front of me. So I forget the title. At the moment, but under the term dominion, you end up with danger or dangerous and also dungeon.

And the other source that I'm thinking of uses the same trail, etymological trail with regard to the word jurisdiction. So jurisdiction leads to the Lord who has the jurisdiction. And the danger is that you will end up in the dungeon of the Lord that judges you and declares you to be guilty of some infraction or whatever.

And so when you go through here, at the very tail end of the word dome, D-O-M-E, you end up with dominant, dominate, a group of words implying acting like a Lord. Dominant, dominate, domineer, dominical, domine, a teacher, a don, D-O-N, dominion. From the power and the tower of the Lord comes dominium, dominium, dominium, dominium, a dominating tower.

And that's where you end up with the dungeon. At first, a dungeon vault or vault of the tower. So the Tower of London.

And these are all related.

[Bruce] (1:12:12 - 1:12:46)

Go ahead. Go ahead, Pete. All the books that all three of us have written, not written, but read over the years, I'm sure the same with both of you.

There's certain books that really stick in your mind, you keep thinking of and coming back to. And there's a book similar to that one, I think, I don't know if the two of you are familiar with it, Raymond Williams book, Key Words.

[Steve3] (1:12:46 - 1:12:50)

I believe that's the one that I'm referencing with regard to jurisdiction.

[Bruce] (1:12:50 - 1:14:45)

Yes. It is such a powerful book. It was one of those books I read, maybe undergrad, graduate school.

You read so much crap you have to read, right? But then there are certain books like, wow, this book is going to stay with me the rest of my life. Just how he takes those words, and he analyzes them from a cultural, historical, societal perspective, words that you just kind of use.

And then you start thinking about where that word come from. And more than just what would be in a dictionary, right? Like, no, really.

And like, Williams was because he was coming from Marxist tradition, right? And so, one of the real strengths with so many Marxist thinkers is they're always looking for where is the domination at work? Who's writing who and how?

I've thought that was one of the things that, from my real impoverished knowledge of American history, but where the threat the state always saw with communism and with Marxism was that criticism of who's writing who and how. Let's not talk about that. No, no, this is for the good of all, and we're all born free, and you know, blah, blah, blah.

Wait a minute, I really want to look at the power structures here. Let's not talk about that, right? So, yeah, keep words.

It sounds similar, and a good example of just trying to keep in mind the words you use.

[Peter] (1:14:46 - 1:15:33)

Well, this seems like a good place. We're at the hour, I think, or maybe we're a bit over. Yeah, we could certainly keep talking, I think, the rest of the afternoon, and we'll come back, I hope, because your ending comment is where we have often just hammered on the importance of etymology, of words, of the use of words, of sentence structure, all of that kind of stuff.

It's crucial. So, I'm thinking we've had a very productive conversation, Bruce, and I'm just very grateful to you for joining us here, and I'm looking forward, we could have something further, maybe when your third book is out, for sure. We'll see what it is, whatever sparked that.

Steve?

[Steve3] (1:15:33 - 1:15:40)

Okay, yeah, thank you for joining us. Really appreciate it, and very much enjoyed the conversation.

[Bruce] (1:15:40 - 1:16:42)

Yeah, thanks, both of you. This is really the type of thing that I love doing. I always tell people a lot, so much of the law bores me to no end.

It's so boring, I have a hard time. I'm fortunate now, I don't have to do as much of the day-to-day stuff, but these fundamental questions about how the law operates and how it's used, particularly the colonizer law, to oppress Indigenous people, and not historically, but today, today, and it will be doing it tomorrow, those conversations and just the opportunity to be part of that, I really cherish it. So, I want to say thank you very much.

Thanks. Thank you, Anushi. Okay, bye.